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Oman Ministerial Decision No. 1152/2/1/141/2026 On the Issuance of the Implementing Regulation of the Tourism Law

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> ***Abrogates:***
> ***Oman Ministerial Decision No. 39/2016 dated 09/06/2016***
> ***Oman Ministerial Decision No. 124/2021 dated 15/08/2021***

Pursuant to Oman Sultani Decree No. 91/2020 On Changing the Name of the Ministry of Heritage and Culture to become the Ministry of Heritage and Tourism, Determining Its Competencies and Approving its Organisational Structure;

The Law On Tourism promulgated by Oman Sultani Decree No. 69/2023;

The Implementing Regulation of the Tourism Law issued by Oman Ministerial Decision No. 39/2016; and

Oman Ministerial Decision No. 124/2021 On the Addition of the Organisation of Adventure Tourism Trips to the Activities of Travel and Tourism Offices;

The approval of the Ministry of Finance; and

Based on the public interest requirements,

The following has been decided:

Article 1

The provisions of the Implementing Regulation of the Tourism Law, attached hereto, shall enter into effect.

Article 2

Those licensed to engage in tourism activities shall, as of the date of entry into effect of the attached Regulation, adjust their situation in accordance with its provisions within six (6) months from the date it comes into force.

Article 3

The aforementioned Implementing Regulation of the Tourism Law and Oman Ministerial Decision No. 124/2021, as well as any provisions contrary to or inconsistent to the attached Regulation, shall be abrogated.

Article 4

This Decision shall be published in the Official Gazette, and shall come into force from the day following the date of its publication.

Issued On: 28/10/1447 H.

Corresponding to: 16/04/2026

Ibrahim bin Said Al Busaidi

Minister of Heritage and Tourism

This Ministerial Decision was published in the Official Gazette, Issue No. 1645, dated 26/04/2026, p. 16.

Implementing Regulation of the Tourism Law

Chapter 1 Definitions and General Provisions

Article 1

In application of the provisions of this Regulation, the terms and expressions appearing herein shall have the same meaning assigned to them in the Tourism Law, and the following terms and expressions shall have the meaning assigned to them, unless the context requires otherwise:

1. Law:

   The Tourism Law.

2. Adventure Tourism:

   Carrying out one or more of the activities stipulated in Annex No. (3) attached to this Regulation.

3. Business Tourism:

   Tourism for the purpose of attending conferences, meetings as well as international and regional exhibitions, and participating in incentive programmes organised by companies and institutions for their clients or employees.

4. Tourist Guiding:

   A tourism activity that provides tourists with historical, natural, heritage and cultural information at tourism sites.

5. High-End Performing Art Troupe:

   A troupe that performs musical, singing or folkloric art as an entertainment service.

6. Guide:

   A document issued by the Ministry that contains the rules, procedures, forms as well as the technical and organisational requirements related to the services provided by the Ministry.

Article 2

The Ministry shall maintain a register for each tourism activity that contains all documents, data, correspondence, licences and violations related to the tourism activity.

In all cases, concerned parties may review the documents and data contained in the register relating to the licensee.

Article 3

No person may engage in any tourism activity, operate or manage tourism or hotel establishments or establish branches or offices for foreign tourism companies except after obtaining a licence from the Ministry.

Chapter 2 - Licences

Article 4

The Ministry shall issue the following licences:

1. Licence for operating or managing tourism or hotel establishments.
2. Licence for travel and tourism offices and branches or offices of foreign tourism companies.
3. Tourist Guiding licence.
4. Adventure Tourism licence.
5. Licence for High-End Performing Art Troupes in tourism and hotel establishments.
6. Business Tourism licence.

Article 5

A licence application shall be filed with the Ministry using the form prepared for this purpose, accompanied by all required data and documents.

Article 6

The Ministry may request the completion of any data and documents it deems necessary from the licensee, provided that they are related to the licence applied for.

Article 7

The Ministry shall examine and decide on the licence application within a period not exceeding sixty (60) days from the date of its filing complete with all required data and documents. Failure to decide on the application within this period shall be deemed an acceptance thereof.

Article 8

The fees for issuing and renewing the licence shall be determined in accordance with Annex No. (1) attached to this Regulation.

Article 9

The licence shall be valid for the periods stipulated in Annex No. (1) attached to this Regulation. The licence may be renewed for another similar period in accordance with the same licensing conditions and procedures, provided that the renewal application is filed at least sixty (60) days before the expiry date of the licence term.

In the event of delay in applying for renewal, a delay fine equal to ten percent (10%) of the value of the fee shall be imposed for each month of delay, starting from the month following the expiry of the licence term. The calculation shall round up any fraction of a month to a full month.

Article 10

The licensee shall comply with the circulars and instructions issued by the Ministry in accordance with the provisions of the Law and this Regulation.

Article 11

The licensee may not modify the licence data may except after obtaining prior written approval from the Ministry.

Article 12

The licensee may not dispose of or assign the licence issued to them except after obtaining prior written approval from the Ministry. The licensee shall be responsible for the licence until the issuance of a new tourism licence to the alienee under the same licensing conditions and procedures.

Article 13

The licence disposition or assignment application shall be filed using the form prepared for this purpose, accompanied by all required data and documents.

The Ministry shall examine and decide on the application within a period not exceeding five (5) working days starting from the date of its filing complete with the required data and documents. In case of its rejection, the decision shall be grounded.

Article 14

The following conditions shall be met for the disposition or assignment of the licence:

1. The licence shall be valid.
2. The licence shall not be suspended.

Article 15

In the event of the death of the licensee, those to whom the ownership of the licence has devolved shall notify the Ministry of the names of their legal representatives, within a period not exceeding six (6) months from the date of death.

The person representing those to whom the ownership of the licence has devolved shall be responsible for the licence and shall take the necessary procedures to transfer the licence within six (6) months from the date of notification to a person who meets the licensing conditions. If this period lapses without transferring the licence, the licence shall be deemed revoked.

Section 1 - Licence for Operating or Managing Tourism or Hotel Establishments

Article 16

An application for preliminary approval to establish a tourism or hotel establishment shall be filed using the form prepared for this purpose. The applicant may not commence any tourism activity merely upon obtaining preliminary approval.

Article 17

The following conditions shall be met for granting preliminary approval to establish a tourism or hotel establishment:

1. The land subject of the licence application shall be designated for residential-commercial, commercial or tourism use for the establishment of hotels, hotel apartments and camps, for agricultural use for the establishment of eco-lodges, for residential use for the establishment of heritage lodges and guesthouses, and for residential, residential-commercial, commercial or tourism use for the establishment of guesthouses within integrated tourism complexes.
2. The cadastral survey of the land shall be approved by the competent authority.
3. The prescribed fee shall be paid, and it shall be non-refundable.

Article 18

The Ministry shall examine the application for preliminary approval referred to in Article (17) of this Regulation, and decide thereon within sixty (60) days from the date of its filing complete with the required documents. If the required documents and conditions are not completed within six (6) months from the date of filing the application, the application shall be deemed cancelled. If they are completed, the licence applicant shall be granted preliminary approval to commence the necessary procedures and approve the plans and the technical plans of the establishment as specified in the Guide, within a period not exceeding one year from the date of approval.

In the event that the application is rejected, the rejection shall be grounded.

Article 19

Tourism and hotel establishments shall be classified into levels as specified in Annex No. (2) attached to this Regulation.

Article 20

A hotel establishment may file an application for reclassification using the form prepared for this purpose, after payment of the prescribed fee.

The Ministry shall examine and decide on the application within thirty (30) working days from the date of its filing complete with all required data and documents. Failure to decide on the application within this period shall be deemed a rejection thereof.

Article 21

For a licence to be issued for operating or managing tourism or hotel establishments, an application shall be filed using the form prepared for this purpose, accompanied by a classification certificate of the establishment as approved by the Ministry, and the prescribed fee shall be paid.

Article 22

The hotel establishment shall comply with the plans and requirements approved by the Ministry and the competent authorities. No modification to the establishment may be made except after obtaining prior written approval from the Ministry.

Article 23

Tourism and hotel establishments shall comply with the following:

1. Appointing a manager in charge of the establishment.
2. Displaying the licence and classification sign in a conspicuous place at the establishment.
3. Displaying the classification on all paper and electronic printed material and publications of the establishment.
4. Establishing electronic linkage with the Ministry, the Royal Oman Police and the competent authorities.
5. Submitting an annual declaration containing detailed monthly data on the annual amounts subject to tourism fees, the amount of fees due thereon as well as the amounts collected and outstanding. The declaration shall be approved by the manager in charge of the establishment or his delegate and certified by the licensed auditor appointed at the establishment. In all cases, the declaration shall be submitted for each completed fiscal year of the establishment within a period not exceeding three (3) months from the beginning of the following fiscal year.
6. Appointing an external auditor from firms approved by the competent authority, to audit the accounts and financial statements of the establishment. Such accounts and statements shall be submitted to the Ministry once every year, within a period not exceeding two (2) months from the beginning of the following fiscal year.

Article 24

Restaurants and cafés shall be considered as classified tourism establishments in the following cases:

1. If located in tourism areas and sites.
2. If located on government tourism lands.
3. If located within the hotel establishment.
4. If managed through commercial franchising contracts.

Restaurants and cafés other than in the above cases may apply to the Ministry for classification as tourism establishments.

Article 25

Restaurants and cafés referred to in Article (24) of this Regulation shall obtain a tourism classification certificate, subject to filing an application with the Ministry using the form prepared for this purpose, accompanied by all required data and documents, and proof of payment of the prescribed fee.

Article 26

The Ministry shall examine and decide on the application to obtain a tourism classification certificate within thirty (30) days from the date of its filing complete with all required data and documents.

Article 27

The tourism classification certificate shall be issued for a period of three (3) years, renewable for one or more similar periods, provided that the renewal application is filed at least sixty (60) days prior to expiry, in accordance with the same conditions and procedures set out in this Regulation.

Article 28

The relevant government units as well as licensed tourism and hotel establishments and their branches or any other entity operating in the tourism sector shall provide the Ministry with the following:

1. Employment plans in accordance with the standards and requirements approved by the Ministry, after approval from the Ministry of Labour.
2. The data of their workers, using the form prepared by the Ministry.
3. Tourism statistical data and periodic reports as determined by the Ministry, particularly the following:

    a- The number of guests and their nationalities.

    b- The revenues.

    c- The number of workers and their data.

    d- The number of overnight stays, room rates and occupancy rates.

Article 29

Tourism and hotel establishments shall collect fees from customers based on the total price charged to the customer, as follows:

1. Tourism fee equal to four percent (4%) for all facilities at the tourism and hotel establishment.
2. Service charge equal to eight percent (8%) for services provided by the tourism and hotel establishment, to be distributed in cash to the workers at the establishments in accordance with the procedures set out in the Guide. The establishment shall provide the Ministry with a detailed statement thereof.

Article 30

Tourism and hotel establishments shall remit the fees stipulated in Clause (1) of Article (29) of this Regulation to the Ministry on a quarterly basis, accompanied by a detailed statement showing the total monthly revenues of the establishment and the amount of the fee. The statement attached to the last quarter of the fiscal year shall indicate the amount of the fee remitted during the year. All statements shall be certified by the external auditor appointed by the establishment.

Section 2 - Licence for Travel and Tourism Offices and Branches or Offices of Foreign Tourism Companies

Article 31

Travel and tourism offices may be licensed to engage in one or more of the following activities, in accordance with the controls set out in the Guide:

1. Organising tourism trips for groups or individuals inside or outside the Sultanate of Oman, in accordance with programmes that include transportation or bookings in tourism and hotel establishments, and related services.
2. Selling, issuing or exchanging travel tickets.
3. Acting as agents and commercial representatives for airlines, shipping companies and land transport operators for tourists.
4. Providing means of transport for tourists.
5. Providing special services to tourists, such as obtaining entry and exit visas, insurance and bookings.
6. Organising Adventure Tourism trips.

Article 32

To obtain a licence for travel and tourism offices and branches or offices of foreign tourism companies, an application shall be filed with the Ministry using the form prepared for this purpose, accompanied by all required data and documents specified in the Guide, in addition to the following:

1. A copy of the valid commercial registration.
2. A lease agreement or proof of ownership of the premises for carrying out the activity.
3. Proof of payment of the prescribed fee, which shall be non-refundable.

Article 33

Travel and tourism offices shall be prohibited from engaging any tourist guide who is not licensed for Tourist Guiding in accordance with the classification specified by the Ministry.

Article 34

Travel and tourism offices that organise tourism trips shall insure tourists under an insurance policy valid throughout the duration of the trip against all risks and damages that may result from the trip.

Article 35

No foreign tourism companies may establish branches or offices in the Sultanate of Oman except after obtaining a licence from the Ministry, and they shall be subject to the same provisions applicable to travel and tourism offices in the Sultanate of Oman.

Section 3 - Tourist Guiding Licence

Article 36

The following conditions shall be met for granting a Tourist Guiding licence:

1. An application shall be filed using the form prepared for this purpose, accompanied by all data and documents specified in the Guide, and the prescribed fee shall be paid.
2. The applicant shall be an Omani national not less than eighteen (18) Gregorian years of age, or a foreigner not less than twenty-five (25) Gregorian years of age and holding a work permit with a travel and tourism office.
3. The applicant shall be of full legal capacity and they shall be medically fit and free from contagious diseases.
4. They shall not have been convicted by a judgement for a felony or a crime involving moral turpitude or dishonesty, unless they have been rehabilitated.

In all cases, Tourist Guiding in English shall be restricted to Omani nationals only. The licence shall specify the language(s) for which the practice of Tourist Guiding is licensed.

Article 37

Tourist Guiding licences shall be classified as follows:

1. First category: General tourist guide who practises Tourist Guiding in all governorates of the Sultanate of Oman.
2. Second category: Site-specific tourist guide who practises Tourist Guiding in a specific governorate, landmark or tourism site.
    - Third category: Specialised tourist guide who practises Tourist Guiding in a specialised field such as architecture, geology or Adventure Tourism.

Article 38

A licensee may apply to change the licence category stipulated in Article (37) of this Regulation to another category, in accordance with the same procedures for issuing the licence stipulated in this Regulation.

Article 39

Those licensed to engage in the practice of Tourist Guiding shall comply with the following:

1. Adhering to the principles of integrity and honesty, and public morals.
2. Carrying and visibly wearing the Tourist Guiding licence.
3. Complying with safety and security regulations and providing first aid equipment.
4. The number of tourists under their supervision at a tourism site not exceeding thirty (30) tourists. If they are accompanying tourists in a transport vehicle, the number of tourists shall not exceed the vehicle’s seating capacity.
5. Adhering to the language(s) specified in the licence for use when practising Tourist Guiding, and to the licence category they are granted.
6. Possessing information about the tourism site.

Article 40

Those licensed to engage in the practice of Tourist Guiding may not carry out the following:

1. Practising Tourist Guiding within military and security areas or in the international border areas of the Sultanate of Oman, or within the customs departments at ports and airports, except after obtaining approval from the competent authorities.
2. Addressing political or religious topics.

3. Organising any tourism trip except through a travel and tourism office through which the guide is licensed to practice Tourist Guiding.
4. Committing any act or making any statement that harms the tourist.
5. Providing any information that is contrary to facts or harms the interests of the Sultanate of Oman.

Section 4 - Licence for Organising Adventure Tourism Trips Or Operating Adventure Tourist Activities

Article 41

The following conditions shall be met to obtain a licence for organising Adventure Tourism trips or operating Adventure Tourism activities:

1. An application shall be filed using the form prepared for this purpose, accompanied by all data and documents specified in the Guide, and the prescribed fee shall be paid.
2. The applicant shall be an Omani national and shall not be less than eighteen (18) Gregorian years of age.
3. The applicant shall be of full legal capacity and they shall be medically fit and free from contagious diseases.
4. The applicant shall hold a safety and security audit certificate issued by the competent authority.
5. They shall not have been convicted by a judgement for a felony or a crime involving moral turpitude or dishonesty, unless they have been rehabilitated.

Article 42

Adventure Tourism activities for companies shall be determined as set out in Annex No. (3) attached to this Regulation, and such activities shall be classified in accordance with the controls specified in the Guide.

Article 43

Those licensed to organise Adventure Tourism trips shall comply with the following:

1. Provide the tourist with detailed information about the trip, its potential risks, the applicable instructions by the competent authorities, the safety and security instructions, the first aid instructions and the approved route maps.
2. Insure tourists under an insurance policy issued in the Sultanate of Oman against all risks arising from the practice of Adventure Tourism.
3. Refrain from organising Adventure Tourism trips in prohibited areas without obtaining approval from the competent authority.
4. Comply with the decisions, instructions and guidelines issued by the Ministry and the competent authorities regarding the organisation of Adventure Tourism trips.
5. Take necessary precautions to avoid risks resulting from natural disasters or weather conditions.
6. Provide a specialised guide during the trip who is licensed by the Ministry.
7. Provide the trip supplies and safety gear that comply with standard specifications and the trip requirements, in proportion to the duration of the trip.

Article 44

Those licensed to operate Adventure Tourism activities shall comply with the following:

1. Obtain a safety and security audit certificate issued by the competent authority to engage in the activity of organisation of Adventure Tourism trips or the operation of Adventure Tourism activities.
2. Comply with safety and security systems and establish a comprehensive safety management plan at the operating site.
3. Develop a risk management plan.
4. Establish standard operating procedures.
5. Keep tourists together under the supervision of the tourist guide.
6. Provide the necessary equipment, clothing and devices at the operating site.
7. Comply with the guidelines for the operation of Adventure Tourism activities specified in the Guide.
8. Cancel Adventure Tourism trips in cases of early weather warnings or natural disasters in accordance with the instructions issued by the competent authorities.

Section 5 - Licence for High-End Performing Art Troupes in Tourism and Hotel Establishments

Article 45

To be granted a licence for High-End Performing Art Troupes, the applicant shall be a hotel establishment classified as three, four or five stars, or a restaurant classified as a tourism establishment.

Article 46

The number of members of the High-End Performing Art Troupe shall be proportionate to the type of the troupe and the performance area. Performance venues in hotels shall be limited to hotel restaurants and lobbies.

Article 47

The licensee may apply to replace a High-End Performing Art Troupe with another troupe, subject to meeting the same conditions set out in this Regulation.

Article 48

High-End Performing Art Troupes shall be prohibited from performing during the following religious occasions:

1. When the sighting of the crescent of the holy month of Ramadan is announced, and until the end of the month.
2. From six o'clock in the evening on the day preceding the Prophet's birthday, until eight o'clock in the evening on the day of the Prophet's birth.
3. From six o'clock in the evening on the day preceding Isra and Mi'raj, until eight o'clock in the evening on the day of Isra and Mi'raj.
4. From six o'clock in the evening on the day preceding the Day of Arafah, until eight o'clock in the evening on the Day of Arafah.
5. From six o'clock on the day preceding the Hijri New Year's Day, until eight o'clock in the evening on the Hijri New Year's Day.

Article 49

The licensee shall comply with the performance schedules of the High-End Performing Art Troupe as specified in Annex No. (4) attached to this Regulation.

Article 50

The licensee and the members of the High-End Performing Art Troupe shall be prohibited from any of the following:

1. Violating public morals and committing acts that are inconsistent with Omani traditions.
2. Wearing Omani traditional attire by non-Omanis.
3. Presenting a performance that has a religious or political nature or has obscene connotations.
4. Disturbing the comfort of hotel guests or restaurant patrons.

In all cases, the licensee shall bear full responsibility for all performances presented by the troupe.

Section 6 - Business Tourism Licence

Article 51

The following requirements shall be met to obtain a Business Tourism licence:

1. Filing an application with the Ministry using the form prepared for this purpose, accompanied by all data and documents specified in the Guide.
2. Obtaining the necessary approvals from the competent authorities.
3. The licence applicant holding a valid commercial registration, provided that it includes travel and tourism activity, or activities related to the organisation of conferences, seminars and exhibitions.
4. Providing premises that are suitable and equipped for carrying out the activity, and that meet all conditions and requirements approved by the competent authorities.
5. Paying the prescribed fee.

Article 52

A Business Tourism licensee shall comply with the following:

1. Providing the Ministry with the programmes implemented in the field of Business Tourism.
2. Providing the Ministry with all statistics relating to Business Tourism activities implemented or to be implemented.

Article 53

Entities wishing to obtain financial support for organising events related to Business Tourism may file a written application with the Ministry in accordance with the controls specified in the Guide.

Article 54

A database for Business Tourism licensees shall be established at the Ministry, and shall include the following:

1. Copies of the valid commercial registration of the licensees.
2. Details of the activities and services covered by each licence.
3. Data on the number of visitors or participants attracted through the activities carried out by each licensee and the economic return from such activities.

Chapter 3 - Usufruct Over and Exploitation of Tourism Areas, Tourism Sites or Government Tourism Lands

Article 55

The Ministry shall oversee the exploitation, organisation and development of approved tourism areas and sites by verifying the following:

1. Adhering to the approved areas and boundaries of each tourism area or site.
2. Complying with the approved management and development plans.
3. Regulating the permitted activities and uses for each tourism area or site.
4. Ensuring the protection of natural and heritage tourism resources and assets, and preserving the tourism and aesthetic value of the tourism area or site.
5. Taking into account economic and environmental considerations, principles of sustainable tourism development and the carrying capacity of each tourism area or site.
6. Establishing and approving the planning, design and operational standards governing projects established within tourism areas or sites.

Article 56

The Minister shall issue a specific regulatory decision for each approved tourism area or site, in accordance with the nature and particular characteristics of each tourism area or site.

Article 57

The Ministry shall regulate the offering of tourism areas, tourism sites and government tourism lands, or any part thereof, for usufruct, exploitation, leasing, operation or management, in accordance with the nature, needs and development objectives of each tourism area, tourism site or government tourism land.

Article 58

An application for usufruct over and exploitation of tourism areas, tourism sites and government tourism lands shall be filed using the form prepared for this purpose, accompanied with all documents and data specified, including proof of the usufruct applicant’s financial solvency and proof of payment of the prescribed fee.

Article 59

Whoever wishes to have usufruct over, exploit, lease, operate or manage tourism areas, tourism sites and government tourism lands shall pay the prescribed fee to obtain the relevant document, as set out in Annex No. (1) attached to this Regulation.

Article 60

Usufruct shall arise pursuant to a contract concluded with the Ministry for this purpose and after registration with the Land Registry Secretariat at the Ministry of Housing and Urban Planning. The contract shall particularly include the following:

1. The area and location of the land subject to usufruct and the type of its intended use.
2. The usufruct consideration and the mechanism for its payment.
3. The term of usufruct and the mechanism for its renewal.
4. A description of the tourism usufruct project, as well as its components, implementation phases and implementation schedule.
5. The obligations of both parties to the contract.
6. The mechanism for termination of the contract, and rescission of the contract in the event of breach, and the resulting effects.
7. The persons authorised to sign the contract.
8. The financial guarantee provided by the usufructuary.

Article 61

The usufructuary shall notify the Ministry in writing prior to changing the legal form, or changing the partners or their shares, where the usufructuary is a legal person, or making any changes to any data inconsistent with the documents attached to the application, without prejudice to the terms of the usufruct contract.

Article 62

The usufructuary may not dispose of the usufruct prescribed for them except after obtaining prior written approval from the Ministry, and the alienee shall not exercise any rights beyond the rights of the usufructuary until the expiry of the usufruct.

Article 63

The usufructuary may not assign the usufruct they are granted to any other person except after obtaining prior written approval from the Ministry and settling all financial obligations due thereon.

Article 64

The usufructuary shall file the usufruct disposition or assignment application using the form prepared for this purpose, accompanied by all required data and documents.

Article 65

The Ministry may terminate the usufruct in the following cases:

1. Failure of the usufructuary to implement the tourism usufruct project within the period specified in the usufruct contract in accordance with the schedule approved by the Ministry, after being notified in writing thereof.
2. Suspension of project implementation by the usufructuary without justification acceptable to the Ministry, for a period not exceeding ninety (90) days from the date of being notified in writing thereof.
3. Use of the project land or facilities by the usufructuary for purposes other than those designated therefor.
4. The usufructuary obtaining the usufruct through fraud, forgery, deceit or submission of incorrect data.
5. The usufructuary's sale of any fixed or movable asset of the project or disposition thereof by any means without obtaining prior written approval from the Ministry.
6. Revocation of the licences related to the project by the competent authorities.
7. Bankruptcy, liquidation or termination of the legal entity of the usufructuary.

Article 66

The Ministry may approve the exploitation, leasing, operation or management of tourism areas, tourism sites or government tourism lands, pursuant to standard contracts prepared for this purpose.

Article 67

The Ministry may offer investment opportunities by announcement for the exploitation, leasing, operation or management of tourism areas, tourism sites or government tourism lands, provided that the conditions and controls for investment are specified therein.

Article 68

The applicant for usufruct over or exploitation, leasing, operation or management of tourism areas and tourism sites and government tourism lands shall provide a bank guarantee equivalent to the contract value.

Article 69

No person shall carry out planning and development works in tourism areas or tourism sites except after obtaining prior written approval from the Ministry.

Chapter 4 - Inspection and Control

Article 70

The Ministry employees vested with law enforcement capacity in the implementation of the provisions of the Law and this Regulation may conduct inspections and control, enter tourism areas and sites, government tourism lands as well as tourism and hotel establishments, and review their licences, records, documents and operating systems.

Article 71

The licensees and their workers shall facilitate the work of the Ministry's employees who are vested with law enforcement capacity, enable them to discharge the functions that fall within the scope of their inspection and control competencies and provide all requested information and data.

Chapter 5 - Administrative Penalties

Article 72

Whoever violates the provisions of the Law and this Regulation shall be liable to the administrative penalties set out in Annex No. (5) attached to this Regulation.

Article 73

The classification of a tourism or hotel establishment shall be downgraded if a decline in its level is established by the Ministry, after it is served a warning and granted a period not exceeding sixty (60) days to remedy the causes of such decline and restore the required classification level.

Article 74

The Ministry may suspend the licence in the following cases:

1. At the request of the licensee.
2. If the licensee fails to comply with the obligations and requirements imposed thereon.
3. In case of violating the provisions contained in this Regulation.

Article 75

The licence shall be revoked in the following cases:

1. If the licensee no longer meets one of the conditions required for granting the licence under this Regulation.
2. If the licensee fails to remit the tourism fees for five (5) consecutive months.
3. If the licensee fails to pay the fines prescribed under the provisions of this Regulation, for a period exceeding six (6) months.
4. If the licensee relinquishes the licence or changes the form of the establishment without the Ministry’s approval.
5. If the licensee carries out activities other than those specified and stated in the licence issued to them.
6. If the licensee opens branches in any region of the Sultanate of Oman without obtaining the Ministry’s approval.
7. If the position of manager in charge of the establishment becomes vacant for any reason for more than sixty (60) days.
8. If work in the establishment ceases for a period of six (6) consecutive months, unless the cessation is for reasons beyond the control of the licensee.
9. If the establishment ceases to exist.
10. If the establishment becomes inoperable or unexploitable.
11. If the licensee becomes bankrupt.
12. At the request of the licensee.
13. If the licence is not renewed within sixty (60) days from the date of expiry.
14. In case of revocation of any of the licences issued by the competent authorities and related to the licence.

The Minister or whoever he delegates shall issue a decision revoking the licence.

Article 76

The concerned persons may notify the Ministry of any violation of the provisions of the Law and this Regulation, after submitting proof of the violation, for review and for taking the necessary legal actions against the violator.

Annex No. 1 - Types of Licences, Approvals, Certificates and Documents, Their Issuance Fees and Their Durations

Service	Duration	Fee / Omani rial
First: Applications		
Application for usufruct over tourism areas or sites or government tourism lands	-	(50) Fifty
Application for exploitation, leasing, operation or management of tourism areas or sites or government tourism lands	-	(150) one hundred fifty
Second: Approvals		
Issuance of preliminary approval for the establishment of a tourism or hotel establishment	(1) One year	(80) Eighty
Issuance of preliminary approval for the establishment of guesthouses and eco-lodges	(1) One year	(40) Forty
Issuance of approval for holding an event in a tourism area or site or government tourism land	-	(100) One hundred
Third: Licences		
1 - Licence for operating or managing tourism and hotel establishments		
Five-star hotel licence	(3) three years	(1,900) One thousand nine hundred
Four-star hotel licence	(3) three years	(1,900) One thousand nine hundred
Three-star hotel licence	(3) three years	(1,450) one thousand four hundred fifty
Two-star hotel licence	(3) three years	(450) four hundred fifty
One-star hotel licence	(3) three years	(450) four hundred fifty

Luxury hotel apartment licence	(3) three years	(1,900) One thousand nine hundred
Superior hotel apartment licence	(3) three years	(1,450) one thousand four hundred fifty
Standard hotel apartment licence	(3) three years	(450) four hundred fifty
Luxury tourist camp licence	(3) three years	(600) Six hundred
Standard tourist camp licence	(3) three years	(600) Six hundred
Rest house licence	(3) three years	(150) One hundred fifty
Eco-lodge licence	(1) One year	(50) Fifty
Heritage lodge licence	(1) One year	(50) Fifty
Guesthouse licence	(1) One year	(50) Fifty
Licence for guesthouses in integrated tourism complexes	(1) One year	(50) Fifty
2- Travel and tourism office licence		
Issuance or renewal of licence for the establishment of branches and offices of foreign tourism companies	(2) Two years	(75) Seventy-five
Issuance or renewal of licence for travel and tourism offices	(2) Two years	(75) Seventy-five
3- Tourist Guiding licence		
a- Omani nationals		
Category one licence	(2) Two years	(20) Twenty
Category two licence	(2) Two years	(10) Ten
Category three licence	(2) Two years	(10) Ten
b- Non-Omanis		
Category one licence	(1) One year	(50) Fifty

Category two licence	(1) One year	(50) Fifty
Category three licence	(1) One year	(50) Fifty
4- Adventure Tourism licence		
Issuance or renewal of licence for organising Adventure Tourism trips	(2) Two years	(100) One hundred
Issuance or renewal of licence for operating Adventure Tourism activities	(1) One year	(100) One hundred
5- High-End Performing Art Troupe licence		
Issuance or renewal of licence for High-End Performing Art Troupe in tourism and hotel establishments	(1) One year	(1,000) One thousand
Replacement of one member of the High-End Performing Art Troupe	-	(50) Fifty
6- Business Tourism licence		
Issuance or renewal of Business Tourism licence	Throughout the duration of the conference, seminar or event	(100) One hundred
Fourth: Certificates and documents		
Issuance or renewal of classification certificate for tourism restaurants and cafés	(3) Three years	(200) Two hundred
Application for a document of usufruct, exploitation, leasing, operation or management of tourism areas or sites or government tourism lands	-	(50 – 500) Fifty to five hundred, according to the estimated value of the project
Issuance of hotel establishment classification or reclassification certificate	-	(100) One hundred

Annex No. 2 - Classification of Tourism and Hotel Establishments

	5 stars	4 stars	3 stars	2 stars	One star	Luxury	Superior	Standard
Hotels	✓	✓	✓	✓	✓			
Hotel apartments						✓	✓	✓
Camps						✓		✓
Rest houses					✓			
Lodges								✓

Annex No. 3 - Adventure Tourism Activities

1	Motorised land adventure activities	Organising off-road driving trips	Execution and operation of all-terrain vehicle (ATV) activities in deserts, mountains and valleys on unpaved roads, and driving on mountainous roads
		Organising tours and all-terrain vehicle (ATV) activities in deserts, mountains and valleys on unpaved roads, and driving on mountainous roads	Park and public facility adventures (such as roller coasters, go-karts, slides and rope parks)
		Organising group touring trips (including quad bike riding)	-
		Organising electric two-wheel bicycle tours	-
		Organising cycling tours (mountain biking or road cycling)	-

2	Non-motorised land adventure activities	Organising mountain climbing, hiking and abseiling trips using the most advanced available equipment	Execution and operation of high-rope activities, zip lines, ladders installed at high elevations or mountains
		Organising crossing activities using high ropes, zip lines or ladders installed at high elevations	
		Organising trips to engage in adventure activities in parks and public facilities (such as roller coasters, go-karts, rope parks and adventure parks)	Execution and operation of park and public facility adventure activities (such as roller coasters, go-karts, rope parks and adventure parks)
		Organising cave exploration trips, cave descent activities, canyon traversing, long valley trekking, and climbing natural or artificial surfaces (including submerged formations), as well as traversing mountain slopes near the sea and mountain trails, and exploration or educational trips for groups of individuals	Execution and operation of cave exploration, cave descent, canyoning, long valley trekking, climbing natural or artificial surfaces (including submerged formations), traversing mountain slopes near the sea or valleys and mountain trails, and exploration or educational trips for groups of individuals
			Execution and operation of camel and horse-riding activities, land navigation sports and long-distance trips, sand skiing, dry slope skiing, sand surfing and ball or board riding

Annex No. 4 - Schedule for Performances of High-End Performing Art Troupe in Tourism and Hotel Establishments

Days	Duration	From (hour)	To (hour)
From Saturday to Thursday and official holidays	Noon	12:00	3:00 pm
	Evening	06:00	1:00 am
Friday	Evening	06:00	1:00 am

Annex No. 5 - Violations and Administrative Penalties

S.N.	Violation	Fine in Omani Rials

1	Violation of Article (2) of the Law	Fine of one thousand (1,000), doubled in case of recurrence of the violation, and suspension of the licence for a period not exceeding three (3) months, and remedy of the violation within the specified time limit
2	Violation of Articles (6), (8), (9) or (10) of the Law	Fine of one thousand (1,000), doubled in case of recurrence of the violation, and remedy of the violation within the specified time limit
3	Violation of Article (11) of the Law	Fine of one thousand (1,000), doubled in case of recurrence of the violation along with the revocation of the licence, and remedy of the violation within the specified time limit
4	Concealment of the classification for the purpose of promoting a tourism or hotel classification higher than the level approved by the Ministry	Fine of one thousand (1,000), doubled in case of recurrence of the violation, and suspension of the licence for a period not exceeding three (3) months, and remedy of the violation within the specified time limit
5	Non-compliance with circulars and instructions issued by the Ministry	Fine not less than one thousand (1,000) and not more than two thousand (2,000), and suspension of the licence for a period not exceeding one month, and remedy of the violation within the specified time limit
6	Modification of licence data without obtaining prior written approval from the Ministry	Fine not less than one thousand (1,000) and not more than two thousand (2,000), and suspension of the licence for a period not exceeding one month, and remedy of the violation within the specified time limit
7	Violation of Articles (16), (61) or (62) of this Regulation	Fine not less than one thousand (1,000) and not more than three thousand (3000), and remedy of the violation within the specified time limit

8	Non-compliance by the hotel establishment with the approved plans and requirements or making modifications to the establishment without prior written approval from the Ministry	Fine not less than five hundred (500) and not more than two thousand (2,000), and suspension of the licence for a period not exceeding one month, doubled in case of recurrence of the violation, and remedy of the violation within the specified time limit
9	Violation of Clauses (2) and (3) of Article (23) of this Regulation	Fine not less than five hundred (500) and not more than one thousand (1,000), doubled in case of recurrence of the violation. If the violation continues, an administrative fine of one hundred (100) per day shall be imposed for each day the violation continues, not exceeding a total of two thousand (2,000), and remedy of the violation within the specified time limit
10	Failure of the tourism and hotel establishments to establish electronic linkage with the Ministry, the Royal Oman Police and the competent authorities	Fine not less than five hundred (500) and not more than one thousand (1000), and remedy of the violation within the specified time limit
11	Tourism restaurants and cafés carrying out the activity without obtaining a tourism classification certificate	Fine of five hundred (500)
12	Violation of Article (28) of this Regulation	Fine not less than five hundred (500) and not more than four thousand (4,000), doubled in case of recurrence of the violation and remedy of the violation within the specified time limit
13	Violation of Clause (1) of Article (29) of this Regulation	Delay fine equal to ten percent (10%) per month of the due fee, calculated after one month from the due date, and not exceeding the total value of the due fee, and remedy of the violation within the specified time limit
14	Violation of Clause (2) of Article (29) of this Regulation	Fine not less than one thousand (1,000) and not exceeding three thousand (3,000), doubled in case of recurrence of the violation, and remedy of the violation within the specified time limit

15	Violation of Article (30) or Clauses (5) and (6) of Article (23) of this Regulation	Fine not less than two thousand (2,000) and not more than five thousand (5,000), and remedy of the violation within the specified time limit
16	Engaging a tourist guide not licensed to practice Tourist Guiding or failing to insure tourists under an insurance policy valid throughout the trip	Fine not less than one thousand (1,000) and not more than two thousand (2,000), and suspension of the licence for a period not exceeding one month, and remedy of the violation within the specified time limit
17	Violation of Article (39) of this Regulation	Fine not less than three hundred (300) and not more than one thousand (1,000), and remedy of the violation within the specified time limit
18	Violation of Article (40) of this Regulation	Fine not less than one hundred (100) and not more than one thousand (1,000), or suspension of the licence for a period not exceeding four (4) months or prohibition from practising the activity in certain areas or revocation of the licence, and remedy of the violation within the specified time limit
19	Violation of Articles (43), (44) or (46) of this Regulation	Fine not less than two thousand (2,000) and not more than six thousand (6,000). If the violation continues, an administrative fine of one hundred (100) shall be imposed for each day the violation continues, not exceeding a total of three thousand (3,000), and remedy of the violation within the specified time limit
20	Violation of Article (48) of this Regulation	Fine not less than one thousand (1,000) and not exceeding two thousand (2,000), and suspension of the licence for a period not exceeding one month, and remedy of the violation within the specified time limit
21	Violation of Article (52) of this Regulation	Fine of two thousand (2,000)
22	Planning and development in tourism areas or tourism sites without obtaining prior written approval from the Ministry	Fine not less than one thousand (1,000) and not more than three thousand (3,000), and remedy of the violation within the specified time limit

23	Violation of Article (71) of this Regulation	Fine of one thousand (1,000), doubled in case of recurrence of the violation, and remedy of the violation within the specified time limit